

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Magdalena Azmitia	Team: Squad #15	CCRB Case #: 201802614	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/03/2018 10:00 PM	Location of Incident: East 103 Street and Glenwood Road	18 Mo. SOL 10/3/2019	Precinct: 69		
Date/Time CV Reported Wed, 04/04/2018 9:55 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Wed, 04/04/2018 10:23 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Nelson Ayala	04705	948015	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Francisco Diaz	27416	952677	069 PCT
2. POM Syed Mahmud	07197	956865	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Nelson Ayala	Abuse: Sergeant Nelson Ayala stopped § 87(2)(b)	A . Substantiated
B . SGT Nelson Ayala	Abuse: Sergeant Nelson Ayala stopped § 87(2)(b)	B . Substantiated
C . SGT Nelson Ayala	Abuse: Sergeant Nelson Ayala stopped § 87(2)(b)	C . Substantiated

Case Summary

On April 4, 2018, § 87(2)(b) and § 87(2)(b) filed this complaint in person at the 69th Precinct stationhouse on behalf of themselves and their friend § 87(2)(b).

On April 4, 2018, at approximately 10:00 P.M., § 87(2)(b) and his friends § 87(2)(b) and § 87(2)(b) were walking along Glenwood Road near East 103rd Street in Brooklyn. PO Francisco Diaz, PO Syed Mahmud, and Sgt. Nelson Ayala, all of the 69th Precinct, drove alongside § 87(2)(b) and his friends until the officers stopped their vehicle in front of § 87(2)(b) and § 87(2)(b) at the corner of East 103rd Street and Glenwood Road and told them to stop and get up against a nearby wall (**Allegations A, B, and C, Abuse of Authority: substantiated**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Nelson Ayala stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Nelson Ayala stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Nelson Ayala stopped § 87(2)(b)

It is undisputed that Sgt. Ayala made the ultimate decision to stop § 87(2)(b)

and § 87(2)(b)

In his testimony to the CCRB, § 87(2)(b) stated that as he, § 87(2)(b) and § 87(2)(b) were walking along Glenwood Road, PO Mahmud asked from his vehicle where the group was going, and § 87(2)(b) declined to answer [BR 03]. § 87(2)(b) described PO Mahmud as a Guyanese or Indian male, 5'8-5'9" tall, with a slim build and dark hair, and in his late 20s to early 30s. § 87(2)(b) noted to § 87(2)(b) at the time that he saw one of the officers get out of the vehicle behind them and appeared to look for something on the ground. Within minutes the vehicle stopped just in front of § 87(2)(b) and his friends at the corner, with the police lights flashing. PO Diaz, PO Mahmud, and Sgt. Ayala got out of the vehicle and told § 87(2)(b) and his friends to get up against the wall, referring to the gate around a home on the corner. The officers then began to ask the group questions, with each of the officers having individual conversations with § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not hear the conversations § 87(2)(b) and § 87(2)(b) were having but noted that PO Mahmud asked him where he and his friends were going. The conversation turned to a group discussion, at which point PO Mahmud asked the group if any of them had dropped a weapon. At that time, § 87(2)(b) stated that he had dropped his metal hair pick but had picked it back up. One of the officers asked for § 87(2)(b)'s identification and took a photo of it. The officers then left the scene.

§ 87(2)(g)

§ 87(2)(b) noted that he had dropped his hair pick as they were walking but immediately picked it up. After § 87(2)(b) and his friends were told to get up against the wall, the officers said that the three of them would be checked for weapons, although they were never frisked or searched. The officers then searched for § 87(2)(b)'s hair pick on the ground for approximately 15 minutes. Several attempts were made to obtain a sworn statement from § 87(2)(b) who remained uncooperative with the investigation [BR 08].

Several attempts were made to obtain a statement from § 87(2)(b) who did not respond to phone calls or letters and remained unavailable throughout the investigation [BR 09].

In his testimony to the CCRB, Sgt. Ayala stated that he was patrolling the area with PO Diaz and Mahmud, traveling along Glenwood Road at approximately two miles per hour [BR 07].

Sgt. Ayala noted that the surrounding area is the number one area for firearm violence in their command. He observed § 87(2)(b) and § 87(2)(b) walking on Glenwood Road, and one of the males, identified by the investigation as § 87(2)(b) made eye contact with the officers before removing an item from the lower half of his body and throwing it on the ground. Sgt. Ayala was seated in the front passenger's side, approximately two car lengths away from § 87(2)(b) and his friends, who were to his right. Sgt. Ayala noted that the object sounded like metal hitting the ground, but he did not see the object because a vehicle was obstructing his view. He believed that the object was a firearm because it sounded like metal and because the area was prone to firearm violence. As a result, Sgt. Ayala made the decision to stop § 87(2)(b) and § 87(2)(b) although there was no discussion among the officers regarding the decision to initiate the stop. The officers proceeded to drive to the corner of Glenwood Road and 103rd Street, at which point Sgt. Ayala exited the vehicle and instructed § 87(2)(b) and § 87(2)(b) to stop, and they complied with no difficulty. He instructed PO Diaz and PO Mahmud to stay with them while he went back to the area where the object had been dropped, approximately 90 feet away. Sgt. Ayala was not able to hear the conversation between the officers and the civilians because of the distance. Within one minute Sgt. Ayala found a metal hair comb, and returned to the group. Sgt. Ayala asked what § 87(2)(b) had dropped, and he replied that he had dropped his comb. The group asked why they had been stopped, and Sgt. Ayala explained the actions that the group had made which prompted the stop, although he did not recall whether he specifically said that he believed they had a weapon. He did not recall whether he asked § 87(2)(b) or § 87(2)(b) if they had weapons, or if any of the males stated that they had weapons. Sgt. Ayala did not recall whether he heard PO Diaz or PO Mahmud ask § 87(2)(b) and § 87(2)(b) if they had weapons.

§ 87(2)(g)

PO Diaz observed § 87(2)(b) and § 87(2)(b) walking eastbound on Glenwood Road before they made eye contact with the officers and began walking faster. Approximately 10 seconds later, PO Diaz heard the metal object fall on the ground and saw § 87(2)(b) bend to pick it up. Due to the three males' previous behavior and the sound of the object falling, PO Diaz believed that one of the males may have dropped a weapon. One officer, whom PO Diaz could not recall, instructed the three males to stop several times, and the males did not respond but complied after two or three times. The officers got out of their vehicle, and PO Diaz and PO Mahmud spoke to § 87(2)(b) and § 87(2)(b) while Sgt. Ayala went back to the area where the object had been dropped to try to recover it. PO Diaz did not recall whether any of the officers made physical contact with any of the males but noted that they may have guided the males to stand closer to a gate or fence. § 87(2)(b) and § 87(2)(b) asked why they were being stopped, and PO Mahmud and PO Diaz explained that due to their behavior and the sound they heard, they thought the males may have dropped a weapon. PO Diaz did not recall whether he asked the males if they had any weapons. § 87(2)(b) noted that he had dropped his hair pick, and showed it to the officers. PO Diaz noted that the hair pick was metal. Sgt. Ayala returned to the group after finding nothing in the area, and joined in explaining the reason for the stop, although PO Diaz could not recall specifically what was said. One of the officers asked for identification, although PO Diaz could not recall whom, and took a photo of § 87(2)(b)'s identification to fill out the Stop Report, as § 87(2)(b) and § 87(2)(b) did not have identification on them. Three Stop Reports were prepared by PO Mahmud.

§ 87(2)(g)

PO Mahmud also observed § 87(2)(b) and § 87(2)(b) begin walking faster upon seeing the officers, and heard a heavy metallic object fall on the ground before seeing § 87(2)(b) pick it up. While PO Diaz and PO Mahmud spoke to § 87(2)(b) and § 87(2)(b) Sgt. Ayala looked for the dropped object approximately 10-12 feet away. PO Mahmud and PO Diaz explained that they had stopped the three males because they heard them drop something. PO Mahmud did not recall if the officers specifically said that they thought the males might have a weapon. Sgt. Ayala asked for identification, which only § 87(2)(b) provided because § 87(2)(b) and § 87(2)(b) did not have any. PO Mahmud did not directly ask if they had weapons, and he did not remember if he heard PO Diaz or Sgt. Ayala ask.

NYPD Patrol Guide Procedure 212-11, which addresses investigative encounters and stops, notes that a level 3 encounter, or Terry Stop, is “any encounter between a civilian and a uniformed member of service in which a reasonable person would not feel free to disregard the officer and walk away” [NYPD 06]. During a level 3 Terry Stop, an officer may detain a person while an “expeditious investigation” is conducted to determine if there is probable cause to arrest the person.



Video.MOV

[BR 04]

Video 1 of 1

Both PO Diaz and PO Mahmud testified that § 87(2)(b) and his friends were instructed to stop several times before they complied on their own, although § 87(2)(b) stated that they stopped because the police vehicle stopped in front of them with flashing lights on. Although PO Diaz, PO Mahmud, and Sgt. Ayala testified that § 87(2)(b) and his friends stopped on their own, video 1 of 1, a brief cell phone video provided by § 87(2)(b) shows that the police vehicle’s lights were on during the encounter. § 87(2)(b) also testified that he and his friends were ordered to get up against a wall, § 87(2)(g)

§ 87(2)(g)

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A level 3 Terry Stop requires reasonable suspicion, which exists when “the information known to the member of the service would make an ordinarily prudent and cautious police officer under the circumstances believe criminal activity is at hand,” and requires articulate specific facts establishing justification for the stop. § 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

Both People v. Ferry, 152 AD2d 952 [4th Dept 1989], and People v. De Bour, 40 NY2d 210 [1976], maintain that innocuous behavior alone does not generate reasonable suspicion that a crime is at hand [BR 21, 22]. Behavior that can be interpreted as being innocent or not indicative of a crime, such as walking quickly away from officers or dropping a seemingly metal object, does not provide the reasonable suspicion needed to justify a stop. Furthermore, an individual's mere presence in a high-crime area also does not constitute reasonable suspicion in the absence of some other indication of criminality, as noted in People v. Riddick, 70 AD3d 1421 [4th Dept 2010], [BR 23].

§ 87(2)(g)

Based on the above, it is recommended that **Allegations A, B, and C** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party [BR 11, 12, 13].
- Sgt. Nelson Ayala has been a member of service for nine years and has been a subject in five CCRB complaints with 13 allegations, of which one was substantiated.
 - § 87(4-b) § 87(2)(g)
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) agreed to mediate this complaint, but the case was returned to investigation after PO Diaz declined to mediate.
- On July 25, 2018, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Officer of the New York City Comptroller will be forwarded upon receipt [BR 10].

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 15

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date